IN THE NATIONAL COMPANY LAW TRIBUNAL : NEW DELHI

COURT-III

CAA-29/ND/2019

In the matter of :
Global Fibres and Fabrics (P) Ltd and Global

Images India (P) Ltd .. PETITIONER

SECTION
Under Section 230-232

Order delivered on 22.8.2019

Coram :
Sh. R. Varadharajan,
Hon'ble Member (Judicial)
Shri Kapal Kumar Vohra,
Hon'ble member (Technical)

For the Petitioner /Op. Creditor : -
For the Respondent/Corporate Debtor :
For the Intervener : Ms. Sonam Sharma, Co. Prosecutor for RD (N)

ORDER

Ld. AR for the petitioner Company as well as Ld. Company Prosecutor for RD as well as Ld. OL are also present. None appears for Income tax Department. In relation to RD, Ld. Company Prosecutor seeks some time to file its report, 3 weeks time is granted. In relation to O.L, it is brought to the notice of this Tribunal by Ld. OL, on a query posed that the Company is involved in the Scheme of Amalgamation and the original documents have not been received as are required to be given by the petitioner Company. Let the petitioner Company hand over the same documents to Ld. O.L.

In relation to Income tax Department, despite notice issued on 19.2.2019 as well as on 08.3.2019, no appearance on their part in relation to the respective Companies nor any observations have been filed. In the circumstances, we direct the Income tax Department finally to file their observations, failing which, right to file observations will stand closed.

Post the matter on 30.9.2019.

-Sd-

-Sd-

(K.K. Vohra)
MEMBER (TECHNICAL)

(R. VARADHARAJAN)
MEMBER (JUDICIAL)

Surjit